

Violent retribution has been occurring on three counts where traditional cultural norms are at variance with modern statutes. The first is marrying within the same *gotra*, which is seen as incestuous. The second is that by custom one is supposed to marry within the caste, though a woman can marry into a higher caste, but not a lower one. The third situation is when young people exercise their right to choose a partner. Self-made marriages meet with resentment because they may deny the family dowry and also the possibility of a network of contacts. Since none of these considerations are upheld in the Hindu Marriage Act, 1955, except (to a degree restricted by the *sapinda* rule) that of *gotra*, and that too not to their satisfaction, khaps have often asked for it to be repealed.

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DEATH OF INNOCENCE

How did it redeem the family's or khap panchayat's honour when Manoj and Babli lost their lives at Karora village in Haryana? Their fault was they had dared to defy the community's 'marriage code' by marrying within the same *gotra*.

He adds that it's a misconception that khaps are opposed to love marriages. "All we say is don't fall in love with your mother, sister, father's sister and in the same village because we treat all women in our village and adjoining villages as sisters. We oppose marriage within the *gotra*, village, and adjoining villages and anyone who's related either by blood or milk." At the Kurukshetra meeting, the khap mahapanchayat did away with its earlier restriction of no-marriage in seven *gotras* from mother's side and seven from father's side which they say was in accordance with what was prescribed in the Vedas. The Jats have listed 4,830 *gotras* but they say over a hundred more *gotras* haven't as yet found a mention in the list.

The khap leaders deny they have ever issued any *fatwas* or death sentence. So how do they explain the brutal killings of Prabhjot Kaur, 19, and Pradeep Singh, 35, in Patti near Amritsar by five gunmen the day the Karnal court handed out its landmark verdict? Prabhjot, from Moga, was related to Ferozepur resident Pradeep. The two had opted for a court marriage last year, ignoring the resistance put up by their respective families. The threatened couple had got police protection on the directions of

the Punjab and Haryana High Court.

Khap leaders quote from Vedas and scientific research to camouflage their anti-woman stand. Procreating with anyone in a blood relation means your children are likely to suffer from genetic defects caused by inbreeding, they argue. It has several critics, such as Jagmati Sangwan, Haryana President, All India Democratic Women's Association, and a Jat herself. "If, as khap panchayat heads say, no honour killings have taken place then why did they not even once contradict the media when these honour crimes were being reported? If they say they do not approve of honour killings then why don't they punish the killers instead of trying to raise funds to support their families?" That caste has remained the biggest social determinant in stratified Bihar as well is established by the insignificant number of inter-caste marriages registered in the state. In 2006, only 14 inter-caste marriages were registered, compared to 20 in 2005. Investigations into the widely discussed death of journalist Nirupama Pathak at her home in Jharkhand's Koderma district have also revealed that her parents were against the idea of an inter-caste union. Honour killings are commonplace in Bihar. Last year, eight people from Ratan Mandal's family were shot and beheaded and their bodies were thrown into a river. Mandal, 21, eloped with an 18-year-old girl in Bhagalpur who belonged to the same gangota caste. In Kaimur, Manish Kumar, 15, was thrashed and thrown under a train that crushed him to death. The girl's family, that belonged to the Dhobi community, was livid after they found that the victim, who was a Yadav, had written a love letter to their daughter.

Uberoi believes honour killings are on the rise because those who were once on the top of the social pyramid now find themselves challenged, if not displaced. In areas of rural Punjab and Haryana especially, agriculture, the mainstay of most landed households, is facing a crisis that includes farmer suicides and fragmentation of land. In such a scenario, those who traditionally had money and power see a lot of advantages going to the Dalits and other backward castes. "They feel challenged by people traditionally lower than them in the changing social and economic complexion and, therefore, want to assert themselves," she says. With brute force.

with inputs from Amitabh Srivastava and Natascha Shah